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BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. RG PC DLLNS

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
DAVID L. GUY, D.MIN, LPC, LICENSE NO. 1576

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the State
Board of Licensed Professional Counselor Examiners ("Board") and
David L. Guy, D.Min., LPC (respondent"), as follows:

1. The Board has jurisdiction over the person of respondent
and the subject matter set forth in this stipulation and order.

2. The Board granted respondent a license to practice as a
Licensed Professional Counselor in Colorado on December 31, 1996.
Respondent was issued license number 1576. Respondent has been
so licensed since that date.

3. On or about June 1, 1999 the Board received a complaint
against respondent alleging practice below generally accepted
standards of practice.

4. Following investigation of the complaint the Board
determined that reasonable grounds existed to refer this matter to
its legal counsel, the Colorado Attorney General, for initiation
of disciplinary action regarding respondent's practice of
professional counseling and psychotherapy.

5. Respondent understands that he has the right to a hearing with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent agrees that he freely and voluntarily enters into this stipulation and order including practice monitoring, and education.

7. The Board hereby orders that respondent's practice of professional counseling and psychotherapy shall be on probation for period of twelve months. During the period of probation respondent can practice professional counseling and psychotherapy only if he complies with the conditions of probation and has a practice monitor in place.

8. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-222(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling and psychotherapy shall be monitored by a Board approved mental health provider ("practice monitor") who evaluates and monitors respondent's practice of professional counseling and psychotherapy and reports in writing to the Board in accordance with this stipulation and order.

c. The practice monitor's first responsibility will be to conduct a practice evaluation. The practice evaluation will examine all aspects of respondent's practice of professional counseling and psychotherapy and his qualifications, ability and competence to practice professional counseling and psychotherapy. The practice monitor will make a recommendation on respondent's ability to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice, with skill and safety for his clients and if respondent has the necessary qualifications, ability, and competence to conduct his practice of professional counseling and psychotherapy and report her/his findings to the Board.

d. Should the Board determine from the practice monitor's report that respondent can not perform any portion of his practice of professional counseling and psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice, or does not have the appropriate qualifications, current ability, or competence necessary to perform any portion of his practice of professional counseling and psychotherapy respondent shall immediately cease any portion of his practice of professional counseling and psychotherapy that the Board determines, based on the evaluation, that he is not qualified, competent, or safe to conduct. Based on the Board's findings and the practice monitor's report, the Board will determine necessary actions that respondent must take and conditions he must meet so that he can practice professional counseling and psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice in any area the Board finds he is not qualified, competent, or safe to practice professional counseling and psychotherapy. Once respondent satisfies the Board that he has taken the appropriate actions and met the conditions so that he is qualified, competent, and safe to fully practice professional counseling and psychotherapy he may resume the full practice of professional counseling and psychotherapy.

e. The practice monitoring shall be conducted as follows:

(i) Respondent's practice monitor shall monitor all of his cases. The practice monitoring shall consist of contact between respondent and his practice monitor that occurs twice a month for one hour or such longer time as the practice monitor deems necessary. The monitoring sessions shall be conducted by telephone except for one meeting every two months that shall involve a face to face, in person meeting between respondent and his practice monitor. During practice monitoring meetings respondent and his practice monitor must review and discuss each of respondent's active cases at least once each month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis).

(iv) After the Board's written approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a

provision stating that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent when he/she sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of professional counseling and psychotherapy.

(vi) Either respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of professional counseling and psychotherapy until he obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with this stipulation and order.

(vii) During the period of probation respondent shall not engage in the practice of professional counseling and psychotherapy without an approved practice monitor in place.

f. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, as defined in C.R.S. §12-43-201(9), or other mental health services, unless such supervision or

consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 8e.

g. Respondent shall complete at least twenty (20) hours of Board-approved professional continuing education. This education shall be designed to educate mental health professionals in appropriate client/therapist confidentiality issues and other legal/ethical issues related to the practice of professional counseling and psychotherapy. Completion of an approved jurisprudence workshop shall be required as part of this education requirement.

h. Respondent must take reasonable steps to assure that his practice monitor provides required reports to the Board.

i. Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for practice monitoring, education, or any other action required in fulfilling the requirements of this order.

j. During the pendency of this order respondent agrees that he will provide permission to and allow his practice monitor to provide medical or psychological information or records to the Board in the event the practice monitor determines that respondent is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. As part of this stipulation and order respondent explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to his practice monitor if the practice monitor determines that he is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care.

9. All time periods and obligations under the probation in this order run only while respondent is engaged in the practice of

professional counseling and psychotherapy in Colorado under the monitoring of a Board approved practice monitor. They are tolled and suspended at all other times.

10. If, respondent discontinues the practice of professional counseling and psychotherapy in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date he ceased practicing and his new address if he has moved.

11. In the event respondent subsequently resumes his practice of professional counseling and psychotherapy in Colorado, he shall provide written notification to the Board prior to resumption of his practice of professional counseling and psychotherapy in Colorado. Such notification shall include his address and the date on which he intends to resume practice.

12. As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C.R.S. §12-43-601(4); and "psychotherapy services", "practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" as defined in C.R.S. §12-43-201(9).

13. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

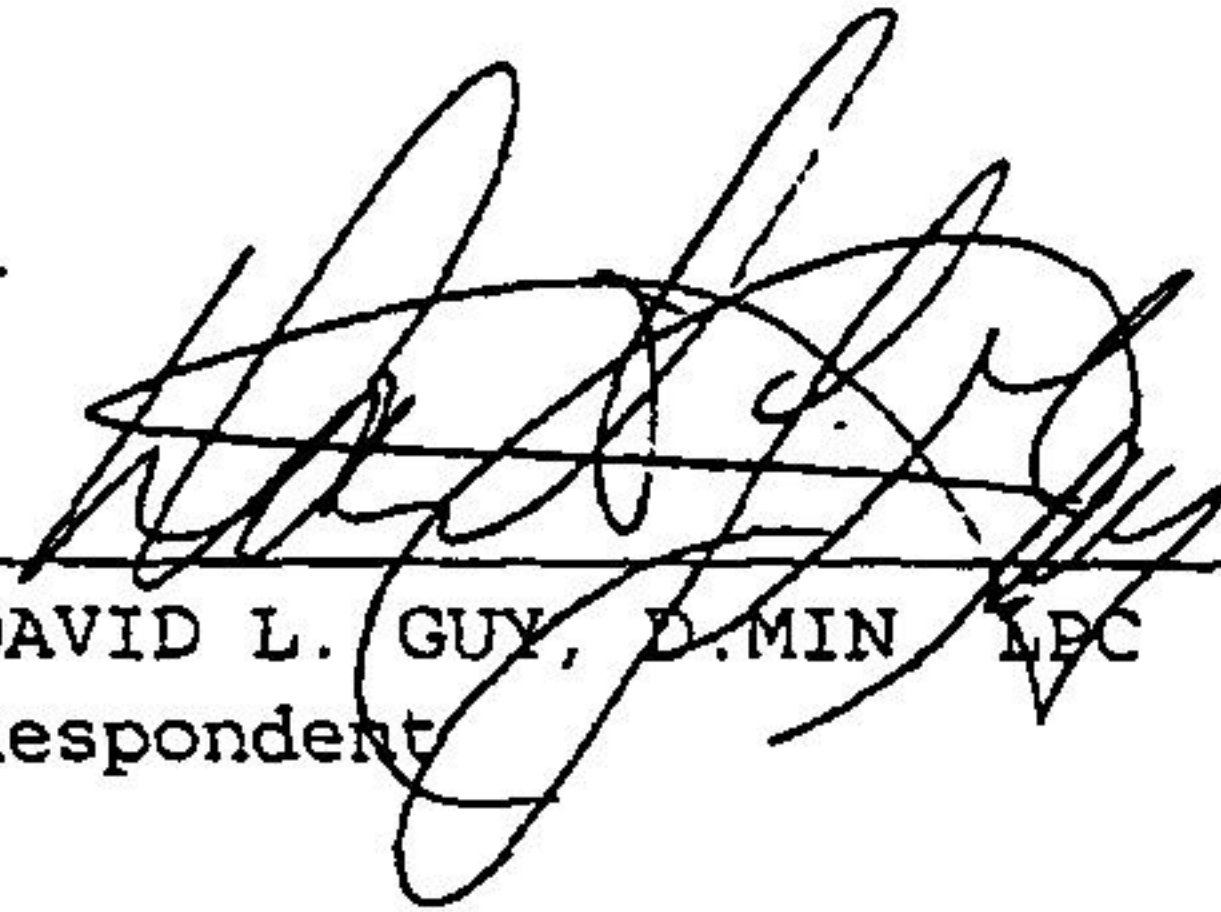
14. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

15. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by

the judicially-construed parts of the order as if they were part of the original order.

16. This stipulation and order shall take effect on acceptance and signature by the Board.

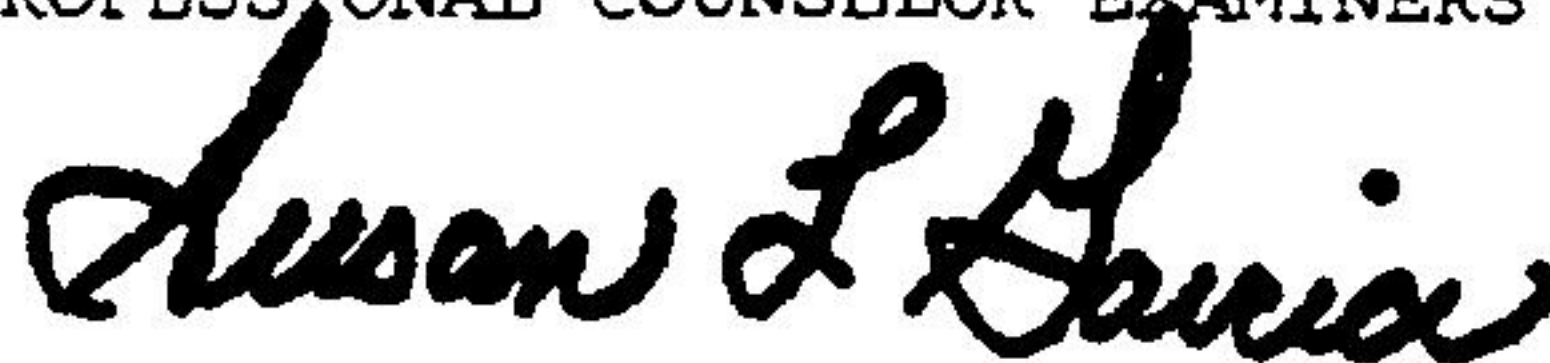
17. This stipulation and order is a public record.


DAVID L. GUY, D. MIN. LEC. COUN. BCETS
Respondent

DATED: 12-28-99-

ACCEPTED, SIGNED, AND ORDERED this 4th day of January,
1999
2000

COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



Susan L. Garcia, M.A.
Vice Chair

APPROVED AS TO FORM

FOR THE RESPONDENT:



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